1.

CASE #	CASE NAME	HEARING NAME
CVME2512487	SWAINE VS SMITH	MOTION TO STAY CIVIL ACTION OR IN THE ALTERNATIVE, STAY DISCOVERY PENDING RESOLUTION OF CRIMINAL PROCEEDINGS

Tentative Ruling: CONTINUED TO AUGUST 24, 2026

2.

CASE #	CASE NAME	HEARING NAME
CVME2514682	SMITH VS PEDDER	MOTION TO COMPEL ARBITRATION

Tentative Ruling: GRANT as to Plaintiff, Larry Smith, individually, and Defendant, Pedder Auto Management, LLC only.

Plaintiff, Larry Smith, alleges that he was initially hired by Defendants in September of 2018 as the General Manager (GM) of Lake Elsinore Chrysler Jeep Dodge Ram (Lake Elsinore CJDR). In the fourth quarter of 2018, Defendant, David Pedder (Pedder), asked Plaintiff if he wanted to run Pedder's entire company as Vice President of the Pedder Auto Group for a $20,000 monthly base salary plus a 20% commission of net profits of the entire company based on a percentage of net profits ranging between $3 million to $9 million resulting in $600,000 to $1,800,000 in bonus earnings. Plaintiff alleges that although there was no written agreement, he accepted the position.

At the end of 2019, Plaintiff became concerned he was not being paid what he was promised and sought clarification from Pedder who agreed to rectify the pay issue. In February of 2020, Pedder agreed to pay Plaintiff $1 million a year going forward but Plaintiff was only paid $552,000. Pedder then agreed to a modified salary/commission compensation package of $1 million a year with any difference being made up by Pedder or Pedder Automotive. Plaintiff, Larry & Corin Smith Auto Consulting, LLC was then created to facilitate services provided by vendors and in joint venture with Pedder Automotive. Plaintiff was paid $1 million for 2021 and 2022 but, less than that amount for 2023 and 2024. Then on 1/6/25, Pedder "violently and unceremoniously terminated" Smith for no apparent reason and without cause in front of staff and customers. (Compl. ¶ 32.) Pedder allegedly attacked Smith's honesty among other slanderous statements, physically assaulted him while attempting to fight him, and failed to pay his earned compensation of at least $788,511.00.

Plaintiffs filed their Complaint on 11/3/25 alleging eleven causes of action: 1) failure to pay all wages due; 2) inaccurate wage statements (Labor Code [LC] § 226); 3) failure to pay meal periods; 4) failure to pay rest periods; 5) failure to pay all wages due at termination; 6) breach of employment contract; 7) repayment of wages to employer (LC § 221); 8) violation of Bus. & Prof. Code § 17200; 9) fraud; 10) defamation; and 11) breach of contract.